

		on counsel's conduct: "And given the nature of the conduct on which the sanctions were based—Trigger's misrepresentation to the court that she was ready to proceed to trial, when she was, in fact, not ready, her failure to ever correct the court's misapprehension as to her readiness, and her delay in seeking a continuance until after the case was called for trial—the 'safe harbor' provisions are not applicable. Rather, these provisions allow time for the withdrawal of frivolous pleadings." <i>Id.</i> at 147. As discussed above, the challenged conduct here is plaintiff's filing of a pleading, i.e., the first amended complaint that defendant contends did not comply with the parties' stipulation. Plaintiff to give notice.
4	Cruz v. PMAB-8, LLC 2023-01318976	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$700,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The following phrase should be removed from paragraph I.B of the settlement agreement: "or needed by the Settlement Administrator." 2. The "Released Claims" provision in paragraph I.Y of the settlement agreement is overbroad. Releases for aggrieved employees other than plaintiffs should not release more than the civil penalties available under PAGA based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. In addition, the settlement agreement should use a consistent term for the aggrieved employees' release, i.e., "Released Claims" rather than "Released PAGA Claims." 3. Subsection (b) of paragraph III.A.I of the settlement agreement should be removed. The court will not approve a settlement that permits defendant to shorten the PAGA period. 4. Plaintiff's counsel seeks attorneys' fees totaling one-third of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys' fees award that exceeds 30% of the gross settlement amount.

		Plaintiff's counsel should address in the supplemental filings whether any such unique circumstances exist here. 5. Plaintiff seeks a \$10,000 enhancement award. Absent unique circumstances, the court is unlikely to approve an enhancement award that exceeds \$2,500 for this settlement. Plaintiff should address in the supplemental filings whether any such unique circumstances exist here. 6. Plaintiff states the settlement administration fees total \$6,651. Brief (ROA 126) at 15:21. The settlement administrator's invoices states the fees total \$7,661. Bui Decl. (ROA 133) Ex. C. The parties should address and resolve this discrepancy in the supplement filing. <u>As to the notice letter:</u> 7. The notice should be revised as necessary consistent with the above. 8. The acronym "PAGA" should be inserted before "settlement" in the title of the notice and in the first sentence. 9. The table of contents on page 1 of the notice should be removed. 10. The word "expressly" should be removed in the fourth paragraph of section 2. 11. Section 4 should state when the aggrieved employees' release is effective. 12. The notice letter should provide the URL for the case website. See Proposed Order & Judgment (ROA 124) ¶ 18. 13. Defendant's counsel states the notice letter should be provided in Spanish, in addition to in English. A. Cruz Decl. (ROA 134) ¶ 3. A certified Spanish-language translation of the notice letter should be attached to the proposed order and judgment as an exhibit. <u>As to the proposed order and judgment (ROA 124):</u> 14. The proposed order and judgment should be revised consistent with the above. 15. The settlement agreement and any amendments thereto should be attached as exhibits to the proposed order and judgment (along with the notice letter in all languages). 16. The proposed order and judgment should state the Gross Settlement Amount. 17. Paragraph 18 of the proposed order and judgment should state that a copy of the Order and Judgment will be posted on the settlement administrator's website for at least 180 days.
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5	De La Riva v. Cirks Construction, Inc. 2023-01339825	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of an \$270,000 class action and PAGA settlement. The court has the following questions and comments: 1. In the March 12, 2026 order (ROA 120), the court stated that the October 16, 2025 order (ROA 107) had identified several issues in the notice and attached forms for the parties to address, but that the parties had not submitted copies of the revised notice and forms to the court. The court ordered the parties to submit copies of the revised notice and forms to the court with the supplemental filings, together with redlines showing the changes made to the documents, and stated that the revised notice and forms should address all of the issues identified in the October 16, 2025 order. The following issues identified in the October